

TENTATIVE RULING

Juan Barbosa
v.
Joshua Moore, et al.
26CV001912

Defendants' Motion to Consolidate

Hearing Date: August 14, 2026

The unopposed motion by Defendants Joshua Moore, Michael Yniguez, and Elite Glass Company (collectively, "Defendants") to consolidate this case ("*Barbosa*") with *Gutierrez v. Moore*, Case No. 26CV002119 ("*Gutierrez*"), and *Reyes v. Moore*, Case No. 26CV002263 ("*Reyes*") is **GRANTED**. Defendants have satisfied the procedural requirements for consolidation. [Cal. Rules of Ct., rule 3.350.] Since all parties in *Barbosa*, *Gutierrez*, and *Reyes* were involved in the same motor vehicle accident on May 6, 2024, there are common legal and factual issues among these cases. [Code Civ. Proc. § 1048.] Consolidating these actions enhances efficiency and helps prevent conflicting rulings. [*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979.]

Therefore, *Barbosa* is hereby consolidated with *Gutierrez* and *Reyes*. Pursuant to Rule 3.350, subdivision (c), of the California Rules of Court, *Barbosa* is the lead case, and any subsequent documents shall be filed only in *Barbosa*.

The Case Management Conferences in *Gutierrez* (August 25, 2026, in Department 14) and *Reyes* (September 1, 2026, in Department 13A) are **VACATED**. At this time, the Court will not set a Further Case Management Conference. The parties may request one if necessary.

As discussed during the Case Management Conference in *Barbosa* on August 10, 2026, this consolidated action is set in Department 14 for trial on August 2, 2027, at 8:30 a.m., and for a Trial Management Conference on July 30, 2027, at 10 a.m. The Mandatory Settlement Conference is set for June 29, 2027, at 1:30 p.m. in Department 14 for assignment.

Defendants shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.